

ASCII MASTER FLOW – PANEL 1/9: Articles 1-4: the territorial power hierarchy

ARTICLE 1

India, that is Bharat = Union of States

territory = States + Union territories + acquired territories

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ARTICLE 2

Parliament admits into Union or establishes new States

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ARTICLE 3

Parliament forms new States and alters area, boundary or name

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ARTICLE 4

consequential First/Fourth Schedule changes and supplemental provisions

laws under Articles 2 and 3 are not amendments under Article 368

FIRST SCHEDULE = living ledger of States and Union territories

PRINCIPLE: States have constitutional status, but no right to secede.

ASCII MASTER FLOW – PANEL 2/9: Article 3 procedure: consultation without a State veto

PRESIDENT'S RECOMMENDATION REQUIRED

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BILL affects area, boundary or name of a State?
  +-- YES -> President refers bill to affected State legislature
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    |   +-- specifies time for expressing views
    |   +-- may extend that time
    |   +-- Parliament is not bound by those views
  +-- NO State affected -> proviso referral does not arise in that form
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    PARLIAMENT passes by ordinary legislative majority
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    PRESIDENTIAL ASSENT -> territorial and Schedule changes

State view is required consultation, not consent.
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ASCII MASTER FLOW – PANEL 3/9: Article 2, Article 3 and foreign-territory transfer are distinct

QUESTION	CONSTITUTIONAL ROUTE
admit or establish new State	Article 2
reorganise existing Indian unit	Article 3
acquire foreign territory	sovereign power; Article 1 can accommodate it
cede Indian territory	constitutional amendment under Article 368
settle uncertain boundary	no cession if agreement only identifies boundary

BERUBARI UNION (1960)

cession of Indian territory cannot be completed through Article 3 alone.

MAGANBHAI ISHWARBHAI PATEL (1969)

boundary settlement differs from cession.

100TH AMENDMENT, 2015

constitutional route used for India-Bangladesh land-boundary exchange.

ASCII MASTER FLOW – PANEL 4/9: First Schedule as a constitutional change ledger

TERRITORIAL LAW UNDER ARTICLE 2 OR 3

- +-- changes First Schedule: State and Union-territory description
- +-- may change Fourth Schedule: Rajya Sabha seat allocation
- +-- may include supplemental, incidental and consequential provisions

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ARTICLE 4 DECLARATION

such law is not deemed an Article 368 amendment

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ORDINARY LEGISLATIVE ROUTE

LIMIT

Article 4 supports territorial reorganisation;
it does not bypass Article 368 for unrelated constitutional changes.

ASCII MASTER FLOW – PANEL 5/9: Integration and linguistic reorganisation, 1947-1956

1947-48 accession and integration of princely states

- 1950 Part A, B, C and D classification begins
- 1948 Dhar Commission cautions against language-only reorganisation
- 1949 JVP Committee postpones linguistic reorganisation
- 1952 Potti Sriramulu's death intensifies Andhra demand
- 1953 Andhra State formed; States Reorganisation Commission appointed
- 1955 Fazl Ali Commission report
- 1956 States Reorganisation Act + Seventh Amendment
 - +-- language accepted with unity, administration and economy
 - +-- Part classifications abolished
 - +-- States and Union territories reorganised

Language became accommodation's basis, not an automatic sole test.

ASCII MASTER FLOW – PANEL 6/9: Post-1956 map-making: reorganisation, creation and renaming

1956 SETTLEMENT

- +-- 1960 Maharashtra + Gujarat
- +-- 1963 Nagaland
- +-- 1966 Haryana + Chandigarh; Punjab reorganised
- +-- 1971 Himachal Pradesh
- +-- 1972 Meghalaya, Manipur and Tripura
- +-- 1975 Sikkim becomes a State
- +-- 1987 Mizoram, Arunachal Pradesh and Goa
- +-- 2000 Chhattisgarh, Uttarakhand and Jharkhand
- +-- 2014 Telangana
- +-- 2019 Jammu and Kashmir reorganised into two Union territories

RENAMING uses Article 3 when a State name changes.

CURRENT MAP IN SOURCE: 28 States and 8 Union territories.

ASCII MASTER FLOW – PANEL 7/9: Jammu and Kashmir reorganisation as an Article 3 stress test

2019 PRESIDENT'S RULE CONTEXT

State legislative powers exercisable by Parliament

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J&K REORGANISATION BILL

+-- Article 3 route

+-- former State divided into

+-- Jammu and Kashmir Union territory with legislature

+-- Ladakh Union territory without legislature

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FIRST SCHEDULE AND REPRESENTATIONAL CONSEQUENCES

ISSUE

Does State-to-Union-territory conversion alter the federal bargain too deeply
for ordinary Article 3 power?

EXAM USE: separate procedural validity from political desirability.

ASCII MASTER FLOW – PANEL 8/9: New-State demand: democratic claim versus viable federal unit

CLAIM FOR NEW STATE

identity + distance from capital + uneven development + administrative access

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CONSTITUTIONAL RESPONSE

Article 3 reorganisation after required consultation

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TESTS

- +-- administrative viability
- +-- fiscal and resource sustainability
- +-- minority protection inside proposed unit
- +-- water, capital, assets, debt and employees
- +-- security and territorial integrity
- +-- democratic legitimacy and transition costs

Smaller can improve access; it does not automatically produce capacity or equality.

ASCII MASTER FLOW – PANEL 9/9: Exact 10/15-mark architecture: flexible territory within an indestructible Union

10 MARKS / 150 WORDS

1. Open with Article 1: Union of States, not a secession compact.
2. Distinguish Articles 2, 3 and 4.
3. Write Article 3 referral and non-binding State view.
4. Add Berubari Union (1960) cession limit.
5. Conclude: flexible internal map, protected national territory.

15 MARKS / 250 WORDS

1. Map Articles 1-4 and First Schedule.
2. Compare admission, reorganisation, acquisition and cession.
3. Trace integration -> linguistic settlement -> post-1956 creation.
4. Evaluate consultation without consent as strong-Union design.
5. Use J&K or a new-State demand as stress test.
6. Balance identity, viability, consent and integrity.
7. Conclude: flexibility is a federal conflict-management device.